

EXHIBIT A**Historic and Architecturally Significant New York Communities:***How Peer Municipalities Regulate Filming and Photography on Private Property***Submitted by:** David McFadden and Robin McFadden | **Public hearing:** August 20, 2026

Research question	Finding from reviewed New York sources
Does historic or architectural significance require categorical prohibition?	No. The reviewed peer communities use permits and objective controls tied to duration, personnel, vehicles, parking, notice, insurance, public-property use, and reimbursable municipal costs.
Was a New York categorical ban on ordinary, containing commercial still photography on private property located?	No categorical New York prohibition was in the reviewed peer set. This is a research finding, not a claim that no such provision exists anywhere in New York.

1. Purpose and Method

This exhibit compares Tuxedo Park with New York municipalities selected for historic, architectural, residential, or high-value community character. It focuses on whether those communities prohibit private-property photography and filming or instead regulate identifiable external effects. Official municipal materials and National Park Service records were favored. The review was conducted as of August 5, 2026.

- “Permit regime” means the activity is contemplated and may proceed when stated conditions are satisfied; it does not mean every application must be approved.
- “No dedicated rule located” is not proof that an activity is exempt or lawful; applicable zoning, noise, parking, event, building, and safety provisions may still apply.
- Rhinebeck requires a jurisdictional caution: the National Register district described below is in the Village, while the filming policy located is a Town of Rhinebeck policy.

2. Executive Comparison

Community	Historic basis	Filming approach	Proper use in argument
Cold Spring	National Register historic district	Private-property film and photography permit	Affirmative permit; agreement, notice, insurance, parking, and impact information
City of Newburgh	City describes itself as a “living architectural museum” with New York’s largest historic district	Film Office and online permit	Affirmatively welcomes production while administering permits
City of Kingston	Multiple local historic districts, including the Stockade area	“Film Friendly Kingston” permit process	Film/photo shoots regulated through advance review
Rhinebeck	Village historic district on State and National Registers	Town filming approval policy	Residential filming expressly allowed during stated hours; jurisdiction differs
Cold Spring / Sleepy Hollow / Irvington	Hudson Valley historic residential comparators	Private property permits or approvals	Conditions focus on insurance, parking, notice, personnel, and municipal services
East Hampton / Southampton / Sag Harbor	Historic and high-value residential communities	Permits, thresholds, or impact controls	Private filming is regulated rather than categorically prohibited
Cooperstown	National Register historic district	No dedicated rule located	Historic comparator only; do not cite as affirmative permission

3. Detailed Community Findings

Village of Cold Spring

Historic or architectural significance. The National Park Service identifies the Cold Spring Historic District as a National Register district significant for architecture, industry, and social history. The district includes Main, Fair and Chestnut Streets and Paulding Avenue.

Filming and photography treatment. The Village’s Film and Photography Permit materials expressly address filming on private property. They require a location agreement with the owner, insurance, parking and layout information, notice within 500 feet, and fees. The packet states that the Village values representation in film, television and print advertising and encourages use of local resources.

Relevance to Tuxedo Park. Cold Spring demonstrates that a compact, architecturally significant Hudson River village can protect neighbors and historic character through notice, insurance, parking controls, and cost recovery rather than an across-the-board ban.

Source: [National Park Service — Cold Spring Historic District](#)

Source: [Village of Cold Spring — Film and Photography Permit Packet](#)

City of Newburgh

Historic or architectural significance. Newburgh’s official Film Office describes the city as a “living architectural museum” with the largest historic district in New York State and highlights its Victorian homes, landmark buildings, parks, and historic streetscapes.

Filming and photography treatment. Rather than excluding production because of that architecture, the city operates a Film Office, publishes production resources, and provides an online film-permit application.

Relevance to Tuxedo Park. Newburgh treats significant architecture as an asset that can be used responsibly. Its policy is particularly useful against the proposition that historic character and production activity are inherently incompatible.

Source: [City of Newburgh — Newburgh Film Office](#)

City of Kingston

Historic or architectural significance. Kingston maintains multiple historic districts and an official historic-district program. Its built environment includes the Stockade district and other architecturally protected areas.

Filming and photography treatment. The city operates “Film Friendly Kingston.” Its materials require advanced coordination for film and photography shoots and address permits for activity involving the public way and municipal services.

Relevance to Tuxedo Park. Kingston pairs historic preservation administration with a production-permit process. The relevant model is coordination and impact management, not the conclusion that commercial image-making is incompatible with a historic community.

Source: [City of Kingston — Historic Districts](#)

Source: [City of Kingston — Film Friendly Kingston](#)

Rhinebeck: Village Historic District and Town Filming Policy

Historic or architectural significance. The Village of Rhinebeck states that its historic district has been listed with the New York State Historic Preservation Office and the National Register since 1979 and was federally expanded in 2021. It also identifies five individually listed National Register sites.

Filming and photography treatment. A separate Town of Rhinebeck policy requires filming approval and expressly states that filming in residential areas is permitted Monday through Friday, from 7:00 a.m. to 9:00 p.m., on nonholiday weekdays. Applications identify place, time, personnel, equipment, vehicles, and parking; insurance and municipal review apply.

Relevance to Tuxedo Park. Rhinebeck is useful as a regional historic-community comparison, but it must be presented accurately: the historic-district source concerns the Village, whereas the located filming policy is a Town policy. Even with that limitation, the Town’s express allowance for residential filming illustrates an impact- and hours-based model.

Source: [Village of Rhinebeck — Historic District](#)

Source: [Town of Rhinebeck — Filming Policy](#)

Village of Sleepy Hollow

Historic or architectural significance. Sleepy Hollow has adopted a formal historic-preservation law and is nationally associated with historic landscapes, architecture, and cultural resources.

Filming and photography treatment. The Village Clerk’s official permit page expressly publishes filming fees for private property and Village property. Private-property filming is therefore contemplated within a permit-and-fee system rather than treated as categorically unlawful.

Relevance to Tuxedo Park. Sleepy Hollow is a close Hudson Valley example of a municipality protecting historic identity while recognizing a lawful path for production on private property.

Source: [Village of Sleepy Hollow — Historic Preservation Law](#)

Source: [Village of Sleepy Hollow — Permits Issued by Clerk](#)

Village of Irvington

Historic or architectural significance. Irvington is a historic Hudson River village with architecturally significant residential neighborhoods and formal land-use review.

Filming and photography treatment. The Village publishes a filming-permit application. An official Board record also documents approval of filming at a private residence, subject to fees, parking, insurance, indemnification, and police controls.

Relevance to Tuxedo Park. Irvington provides a concrete private-residence example: the response to possible external effects was approval with enforceable conditions, not a categorical prohibition on the owner's location use.

Source: [Village of Irvington — Filming Permit Application](#)

Source: [Village of Irvington — Board Record Approving Private-Residence Filming](#)

Village of East Hampton

Historic or architectural significance. East Hampton is a historically and architecturally significant, high-value residential village with strong community-character and land-use controls.

Filming and photography treatment. Its official filming materials cover filming within Village boundaries, including private locations, through a permit. The process identifies location, dates, times, personnel, vehicles, and equipment. Fees, insurance and additional police or traffic deposits may apply when impacts require them.

Relevance to Tuxedo Park. East Hampton shows that stringent residential protection can coexist with a permit path calibrated to traffic, personnel, and municipal-service demands.

Source: [Village of East Hampton — Film and Photo Shoot Materials](#)

Town and Village of Southampton

Historic or architectural significance. Southampton contains historic and high-value residential areas where neighborhood character, traffic and privacy are major municipal concerns.

Filming and photography treatment. The Town’s official page states that a permit is required for commercial filming or photography on public or private property when 25 or more people are engaged. The incorporated Village separately permits commercial or educational filming on public or private property through a Clerk-administered process addressing personnel, vehicles, equipment, insurance, and conditions. Private-property fees may be tied to Village costs.

Relevance to Tuxedo Park. Southampton’s models demonstrate two proportionate alternatives: a numerical threshold that leaves smaller activity outside the stated trigger, and a conditional permit process tied to scale and actual municipal burdens.

Source: [Town of Southampton — Filming Permit](#)

Source: [Village of Southampton — Film Permit Guidance](#)

Village of Sag Harbor

Historic or architectural significance. Sag Harbor is a historic incorporated village with a distinctive architectural and maritime setting.

Filming and photography treatment. The Village’s official materials state that permits are required for commercial photographic activity on private or public property and provide an application for photographic activity.

Relevance to Tuxedo Park. Sag Harbor directly recognizes commercial photography on private property as a regulable activity with a permit path, not an activity that must be prohibited simply because the setting is residential or historic.

Source: [Village of Sag Harbor — Village Hall Permits](#)

Source: [Village of Sag Harbor — Photographic Activity Application](#)

Village of Cooperstown — Historic Comparator Only

Historic or architectural significance. The National Park Service lists the Cooperstown Historic District on the National Register and identifies architecture, commerce, literature, government, agriculture, and other areas of significance.

Filming and photography treatment. No dedicated Cooperstown ordinance, permit application or official policy specifically governing commercial filming or still photography on private property was in the review. Ordinary zoning, noise, parking, events, and safety provisions may nevertheless apply.

Relevance to Tuxedo Park. Cooperstown establishes that community-wide historic significance is not unique to Tuxedo Park. Because no dedicated filming rule was located, Cooperstown does not provide affirmative evidence that private-property filming is either permitted or exempt.

Source: [National Park Service — Cooperstown Historic District](#)

4. Additional New York Permit Models

The following communities add weight to the broader pattern, even where the historic designation is not the principal reason for including them:

- Town of East Hampton: private-property still-photography fees scale by cast and crew; public costs such as police traffic control are charged when required.

Source: [Town of East Hampton — Filming and Still Photography](#)

- Town of Southampton: the official permit page states a 25-person trigger for commercial filming or photography on private or public property, illustrating a scale threshold instead of a blanket prohibition.

Source: [Town of Southampton — Filming Permit](#)

- Village of Bronxville: commercial filming and still photography on public or private property proceed through permits, while private-location compensation remains a matter between the owner and production company.

Source: [Village of Bronxville — Filming in Bronxville](#)

- Village of Old Westbury: its current filming law covers public and private property through a permit regime but expressly excludes still photography from the filming definition, an important example of narrower drafting.

Source: [Village of Old Westbury — Local Law 2-2023](#)

- Village of Sagaponack: the cited photography chapter is directed to principal photography on streets, sidewalks, and other public property; on its face, it does not impose the same permit trigger on a contained private-property shoot.

Source: [Village of Sagaponack — Principal Photography Permit Packet](#)

5. Policy Conclusions for the Tuxedo Park Record

- Historic preservation and private-property filming are not mutually exclusive. Cold Spring, Newburgh, Kingston, Sleepy Hollow and other reviewed communities protect architectural character while maintaining a path for production activity.
- The principal New York model is regulation of external effects: hours, duration, frequency, personnel, vehicles, parking, public-road use, generators, lighting, noise, insurance, notice, and reimbursement of actual municipal costs.
- Subject-matter distinctions are a poor proxy for neighborhood impact. A real-estate listing shoot, architectural feature, fashion shoot and book or magazine shoot of

identical size and duration impose the same physical effects even though their downstream publications differ.

- A categorical prohibition would require a stronger factual explanation than an objective permit system because peer communities demonstrate that less restrictive, administrable alternatives exist.
- The comparison does not establish a constitutional rule by itself. It is relevant evidence concerning fit, proportionality, available alternatives, consistent treatment and whether the asserted public-welfare rationale is supported by the legislative record.

6. Proposed Neutral Model for Consideration

If the Board concludes that the current Code requires clarification, the peer research supports an objective safe harbor and permit structure rather than a ban based on whether images generate revenue. For example:

- Safe harbor for a contained still or motion shoot of no more than eight hours, with a defined cap on annual frequency, personnel, and vehicles;
- All parking onsite; no public attendance, admission charge, road closure or staging on Village property;
- No amplified sound, exterior generator, special effects, intrusive exterior lighting, or drone operation without any authorization otherwise required by law;
- Specified daytime hours and compliance with existing noise, fire, building, traffic, and privacy protections;
- Express exclusions for ordinary incidental home-office communications and resident-created content that brings no outside crew, vehicles, equipment, public-road use, or documented neighborhood impact—including routine business calls, interviews, podcasts, and self-produced social-media content;
- Permit review only above objective impact thresholds, with written reasons, definite decision deadlines, and uniformly applicable standards;
- Insurance and reimbursement of actual Village costs only when the scale of an activity requires municipal services; and
- Stop-work or enforcement authority for a documented actual intrusion upon safety, privacy, or neighborhood tranquility.

Submitted with the written comments of David McFadden and Robin McFadden concerning the proposed Village of Tuxedo Park local law. This exhibit presents policy and factual research, not a legal opinion. The cited municipal codes and web materials reflect the sources reviewed as of August 5, 2026; the final proposed text and any subsequent amendments must be considered with those sources.

7. Research Boundary and the National Counterexample

The reviewed New York peer set did not reveal a categorical prohibition on ordinary, contained commercial still photography conducted on private property. That is a bounded research finding, not proof that no such law exists anywhere in New York or the United States. The comparative evidence is relevant to proportionality, available alternatives, and legislative fit; it is not, by itself, a constitutional rule.

A nationwide reverse search identified a genuine counterexample: Palm Beach, Florida adopted an ordinance stating that filming or photography for commercial or quasi-commercial purposes in private residential buildings or accessory buildings in residential zoning districts is prohibited. Tuxedo Park therefore would not be the only municipality in the country with such a restriction.

Palm Beach is nevertheless distinguishable. Its ordinance contains municipality-wide findings involving heavy traffic volumes, constrained parking, barrier-island access, and production impacts, and it operates through established residential zoning restrictions. That example strengthens—not to weaken the request that Tuxedo Park identify its own documented conditions and explain why a categorical rule is necessary for a quiet, six-hour owner-supervised session with no identified external impact.

8. If Tuxedo Park Chooses a Materially Stricter Path, the Record Should Explain the Local Need

The reviewed New York record shows that historic, architecturally significant, and high-value communities commonly protect residential character through thresholds, permits and conditions directed to measurable effects. No categorical New York prohibition on ordinary, containing commercial still photography on private property was in the reviewed peer set. This is a bounded research finding, not proof that no such restriction exists elsewhere.

If Tuxedo Park chooses a materially stricter approach, a sound legislative record should identify the local concern being addressed; explain why Chapters 25, 51 and 100 are inadequate; evaluate objective limits on hours, personnel, vehicles, parking, noise and road use; and explain why any additional burden is necessary and proportionate. Peer practice does not bind the Board, but it demonstrates that administrable alternatives are available.

Tuxedo Park's history also demonstrates that preservation can coexist with carefully defined institutional, recreational, and temporary uses. The relevant question is not whether the Village must copy another municipality, but whether its chosen rule is clearly defined and fitted to local conditions.

